

The motion was served on May 10, 2022, according to the proof of service. The Court is without a responsive declaration and orders one be filed. Should a response not be filed, the Court intends to issue orders on what information it has.

The parties should come prepared to address the issue of child custody recommended counseling, i.e. whether they have reported to Family Court Services as ordered at Section 6 of the FL-300 form.

Tumino

v.

Tumino

(Case No. 195081)

Mr. Tumino filed a request for order seeking one-half of the stimulus proceeds received by Ms. Tumino and to change child support. The matter came regularly for hearing on May 23, 2022, and then continued to today's date to allow Ms. Tumino to file a responsive pleading and the necessary income and expense declaration. As of the drafting of this tentative decision, the documents have not been received by the Court. The Court orders a response be filed along with an income and expense declaration.

Pursuant to a stipulated judgment, Mr. Tumino is paying \$1,400.00 per month in support. He contends the earnings of Ms. Tumino have substantially changed since entry of judgment. How so? She is an esthetician and her work had become nonexistent because of the Covid shutdown, but has since changed and "she is now leading a lavish lifestyle and traveling frequently" (See Mr. Tumino's Attachment to the FL-300). He also identifies Ms. Tumino as the sole recipient of the \$4,000.00 in IHSS funding (for their children) received monthly. To the extent possible and with the information available, each party shall come to Court with a proposed calculation of child support.

In regards to the stimulus payment, Mr. Tumino contends \$14,000.00 has been received and negotiated by Ms. Tumino. She admits this, allegedly. He is asking for one-half of this amount (\$7,000.00). Having conferred with the judgment, the Court tentatively sides with Mr. Tumino on this issue, but reserves on the final decision until after considering Ms. Tumino's responsive declaration.

Lumgair

v.

Lumgair

(Case No. 198561)

The matter is set for status conference regarding financial issues made part of the April 15, 2022, request for order. Both parties have filed income and expense declarations; however, Ms. Lumgair's shows zero income with the date of her last employment being 2015. Mr. Lumgair's responsive declaration suggests she is now earning \$2,480.00 per month. Assuming this information to be accurate, Ms. Lumgair is ordered to file a current income and expense declaration.

Assuming the parties believe orders can arise from the status conference, each party should come to court with a proposed calculation for support.

Putnam

v.

McDonald

(Case No. 198133)

Ms. Putnam has filed a request for order and served the same on May 19, 2022, via mail. Service appears untimely. California Code of Civil Procedure, section 1005, states:

"Unless otherwise ordered or specifically provided by law, all moving and supporting papers shall be served and filed at least 16 court days before the hearing.... However, if the notice is served by mail, the required 16-day period of notice before the hearing shall be increased by ... 10 calendar days if either the place of mailing or the place of address is outside the State of California but within the United States."

Mr. McDonald resides in Portland, Oregon. The required notice is insufficient to hear the matter on June 6, 2022. The Court continues the matter to June 20, 2022, at 10:00 a.m. in Dept. 11 for further proceedings on Ms. Putnam's request for order. Ms. Putnam shall give notice of the continued hearing date to Mr. McDonald.